

25NNCV00322 25NNCV00322

County: los-angeles

Division: Civil Law and Motion

Department: P

Hearing date: 2026-08-12

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=PAS%2CP%2C08%2F12%2F2026

Source SHA-256: 1c4c4e9dfc27a482e6158e4573907038da9a27ff20adce0c5c5213219271f938

Case Number: 25NNCV00322 Hearing Date: August 12, 2026 Dept: P

[TENTATIVE] ORDER DENYING

PLAINTIFFS' MOTION TO AUTHORIZE FURTHER DEPOSITION OF UBER TECHNOLOGIES, INC'S
PERSON MOST QUALIFIED

I. INTRODUCTION

This action arises out of a motor vehicle collision that occurred on August 31, 2024, near the intersection of Vineland Avenue and Victory Boulevard in North Hollywood. Plaintiffs Patria Diaz and her minor son, Cedric Valdez ("Plaintiffs"), allege they suffered severe injuries when Defendant Daryoush Mehrabani, while driving for Uber, crossed into oncoming traffic and caused a head-on collision. Plaintiffs filed this action on January 16, 2025, asserting claims against Mehrabani, Uber Technologies, Inc., Rasier, LLC, and Rasier-CA, LLC.

On July 10, 2026, Plaintiffs filed the instant motion. On July 30, 2026, Uber filed an opposition. On August 5, 2026, Plaintiffs filed a reply and supplemental declaration.

II. LEGAL STANDARD

Code Civ. Proc. §2025.450 provides relief where a party fails to appear for deposition without having served a valid objection. It provides as follows:

(a) If, after service of a deposition notice, a party to the action or an officer, director, managing agent, or employee of a party, or a person designated by an organization that

is a party under Section 2025.230, without having served a valid objection under Section 2025.410, fails to appear for examination, or to proceed with it, or to produce for inspection any document, electronically stored information, or tangible thing described in the deposition notice, the party giving the notice may move for an order compelling the deponent's attendance and testimony, and the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice.

(b) A motion under subdivision (a) shall comply with both of the following:

(1) [omitted]

(2) The motion shall be accompanied by a meet and confer declaration under Section 2016.040, or, when the deponent fails to attend the deposition and produce the documents, electronically stored information, or things described in the deposition notice, by a declaration stating that the petitioner has contacted the deponent to inquire about the nonappearance.

...

(g)(1) If a motion under subdivision (a) is granted, the court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) in favor of the party who noticed the deposition and against the deponent or the party with whom the deponent is affiliated, unless the court finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.

(2) On motion of any other party who, in person or by attorney, attended at the time and place specified in the deposition notice in the expectation that the deponent's testimony would be taken, the court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) in favor of that party and against the deponent or the party with whom the deponent is affiliated, unless the court finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.

III. ANALYSIS

Plaintiffs bring the instant motion seeking an order authorizing a further deposition of Uber's PMQ. When the motion was filed, Plaintiffs' motion for leave to file a First Amended Complaint was pending, and Plaintiffs argued that the proposed direct-liability claims expanded the issues requiring PMQ testimony beyond those addressed at the first deposition. (Motion, pp. 4-5.) The Court subsequently denied Plaintiffs' motion for leave to amend on July 29, 2026.

Plaintiffs previously deposed Uber's PMQ, Peter Sauerwein, for approximately seven and one-half hours on November 13, 2025, concerning 16 categories, including Mehrabani's onboarding, background checks, training, driver agreements, regulatory compliance, and independent-contractor classification. (Motion, pp. 3-4; Opposition, p. 6.)

Uber opposes the motion, arguing it is moot, procedurally defective, and duplicative of the prior deposition. In reply, Plaintiffs concede that the denial of leave to amend narrows their request but contend that further nonduplicative PMQ testimony remains relevant to the operative complaint. Plaintiffs accordingly withdraw or narrow several of the originally requested categories. (Reply, pp. 2–3; Supp. Avanness Decl., ¶¶ 6-8.)

The motion is
procedurally defective

Code of Civil Procedure section 2025.450, subdivision (a), provides that where a party or designated organizational witness, after service of a deposition notice, fails to appear or proceed with the examination, the noticing party may move for an order compelling the deponent's attendance and testimony. (Code Civ. Proc., § 2025.450, subd. (a), *italics added*)

Here, Plaintiffs do not move to compel Uber's PMQ to attend or proceed with a deposition following a failure to appear. Rather, Plaintiffs seek a prospective order "authorizing" a further PMQ deposition before the noticed deposition date. Plaintiffs identify no statutory authority providing for such prospective relief. Thus, the Court finds the motion procedurally improper.

Even if the
motion was procedurally proper, the motion as presented no longer supports the

relief sought

Even if the motion were procedurally proper, the Court finds the motion as presented no longer supports the relief sought. Plaintiffs filed the motion while their motion for leave to amend was pending and expressly relied on the proposed direct-liability claims to justify further PMQ testimony concerning Uber's monitoring, supervision, retention, and safety practices. (Motion, pp. 4-6.) However, the Court subsequently denied Plaintiff's motion for leave to amend.

Plaintiffs now concede that the denial of leave to amend narrows the permissible scope of the requested deposition. Therefore, in reply, Plaintiffs withdraw several categories and substantially narrow others to matters they contend remain relevant to the operative complaint.

However, the relief Plaintiffs now seek differs materially from the relief presented in the moving papers. The Court declines to determine, based on a materially revised request presented for the first time in reply, which portions of the proposed categories remain relevant and nonduplicative.

Based on the foregoing, the motion is DENIED without prejudice.

Sanctions

Uber requests \$1,000 in monetary sanctions. Although the Court denies Plaintiffs' motion, the Court finds Plaintiffs acted with substantial justification in seeking resolution of the parties' dispute concerning further PMQ discovery, as reflected by Plaintiffs' supplemental declaration and reply narrowing the scope of the requested deposition following the Court's denial of leave to amend.

IV. CONCLUSION AND ORDER

The Court DENIES Plaintiffs motion to authorize further deposition of Uber's PMQ. The Court further DENIES Uber's request for monetary sanctions.

Plaintiffs are to give notice.

Dated: August 12, 2026

JARED D. MOSES

JUDGE OF THE SUPERIOR COURT